

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2004-003604

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
LICENSE TO PRACTICE AS A PROFESSIONAL COUNSELOR IN THE STATE OF
COLORADO OF GRACE FOSTER POLLARD, LPC, LICENSE NO. 1139,

Respondent.

IT IS HEREBY STIPULATED by and between the Colorado State Board of
Licensed Professional Counselor Examiners ("Board") and Grace Foster Pollard, ("Re-
spondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this stipulation.
2. Respondent was licensed as a professional counselor in the State of Colorado pursuant to license number 1139 beginning on or about March 3, 1995.
3. On or about June 30, 1996, Respondent allowed her professional counseling license to lapse.
4. Respondent admits the following:
 - a. Respondent has continued to practice as a licensed professional counselor and has undertaken the supervision of one individual seeking post-degree experience and supervision after June 30, 1996.
 - b. On or about January 29, 2001, Respondent signed a contract for clinical supervision to provide supervision for a school based counselor.
 - c. Under the terms of the contract, Respondent agreed to supervise the school based counselor in 2001 and 2002.

d. In February 2004, the school based counselor submitted her supervision and post-degree experience documentation to the Board.

e. Documentation showed that the supervision began on January 29, 2001 and ended on May 27, 2002.

f. On said documentation, Respondent presented herself as a licensed professional counselor despite that her license had lapsed.

g. Respondent has advertised herself as a licensed professional counselor after June 30, 1996 despite that her license had lapsed.

5. By virtue of the admissions in paragraph 3 above, Respondent admits, and the Board hereby finds, that respondent violated §§ 12-43-222(1)(b), (c), (g) and (n) C.R.S.

6. The statutory authority of the Board is as follows:

12-43-222. Prohibited activities – related provisions. (1) A person licensed, registered, or regulated under part 3, 4, 5, 6, or 7 of this article is in violation of this article if such person:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article or rule promulgated pursuant to this article or any order of a board established pursuant to this article;

(c) Has used advertising that is misleading, deceptive, or false;

(g) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which such person practices. A certified copy of a malpractice judgment of a court of competent jurisdiction shall be conclusive evidence of such act or omission, but evidence of such act or omission shall not be limited to a malpractice judgment.

(n) Has failed to render adequate professional supervision of persons practicing pursuant to this article under such person's supervision according to generally accepted standards of care;

7. Respondent hereby relinquishes the license and the right to practice as a licensed professional counselor in the State of Colorado and requests the Board to accept said relinquishments. Such relinquishment shall have full force and effect as a revocation ordered by the Board. Respondent tenders the license simultaneously with

execution of this document. Following relinquishment of the license, Respondent shall not perform any act requiring a license to practice.

8. Respondent understands that if Respondent applies for licensure at any future time, respondent will be required to comply with all criteria for initial licensure which exist at the time of the application.

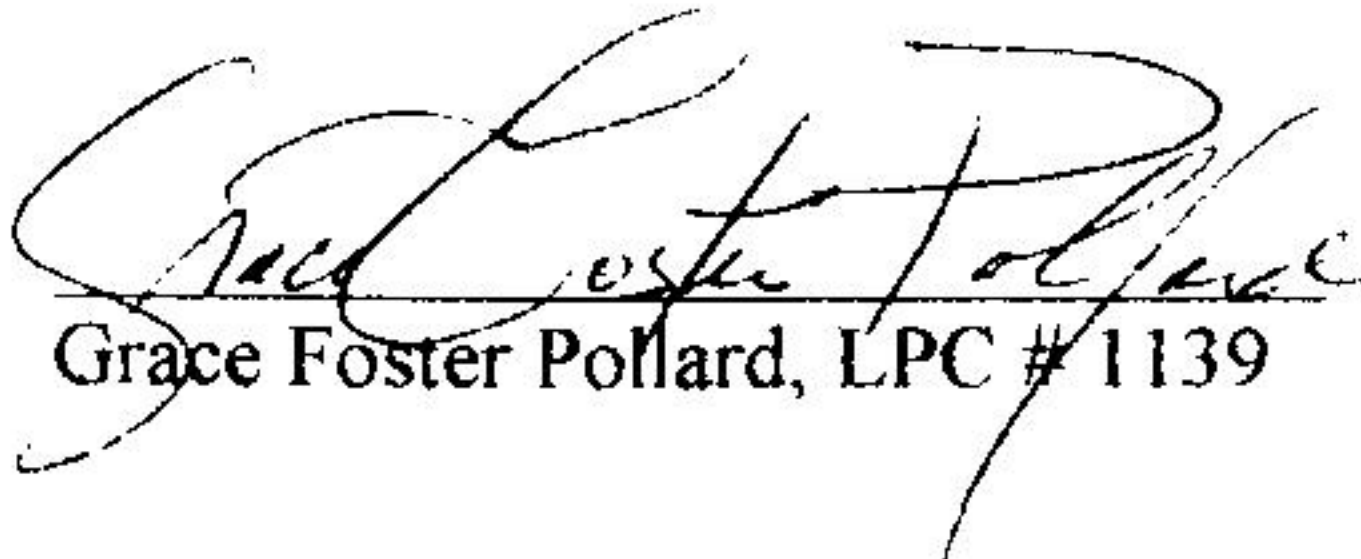
9. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing pursuant to § 12-43-224, C.R.S. concerning the facts admitted in paragraph 4 above, and hereby waives those rights and requests that this Stipulation and Order be accepted by the Board with the same force and effect as an Order entered as a result of a formal disciplinary hearing.

10. This Stipulation and Order is entered into by Respondent voluntarily and without coercion and after an opportunity to consult with counsel and with full understanding of the legal consequences of this Stipulation and Order and the right to formal hearing on all matters herein.

11. This Stipulation and Order shall become an Order of the Board when accepted by the Board and signed by an authorized Board representative.

12. This Stipulation and Order is a public record in the custody of the Board at all times.

RESPONDENT


Grace Foster Pollard, LPC # 1139

**COLORADO STATE BOARD OF
LICENSED PROFESSIONAL COUNSELOR
EXAMINERS**

By: 
Cindy J. Musil, Chair

Effective Date: This 21st day of
September, 2005.

APPROVED AS TO FORM:

JOHN W. SUTHERS

Attorney General



ILENE I. WOLF MOORE, 28898*

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